



Administration of Justice Act 1977

1977 CHAPTER 38

An Act to make further provision with respect to the administration of justice and matters connected therewith, to alter the method of protecting mortgages of registered land and to amend the law relating to oaths and affirmations and to the interest of a surviving spouse in an intestate's estate. [29th July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

GENERAL

1.—(1) The enactments relating to legal aid, advice and assistance in England and Wales shall be amended in accordance with Part I of Schedule 1 to this Act. Legal aid, advice and assistance.

(2) The enactments relating to legal aid, advice and assistance in Scotland shall be amended in accordance with Part II of that Schedule.

2.—(1) The amendments specified in Part I of Schedule 2 to this Act shall have effect for the purpose of enabling the rates of the sums whose payment is provided for by the enactments mentioned in that Part of that Schedule (which extend to England and Wales only) to be determined administratively. Determination of expenses etc.

(2) The amendments specified in Part II of that Schedule shall have effect for the purpose of enabling the rates of the sums whose payment is provided for by the enactments mentioned in that Part of that Schedule (which extend to Scotland only) to be determined administratively.

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(3) The amendment specified in Part III of that Schedule shall have effect in the enactment mentioned in that Part of that Schedule (which extends to the whole of the United Kingdom) for the purpose of enabling the rates of the sums whose payment is provided for by it to be determined administratively.

Enforcement
of maintenance
orders.

3. Schedule 3 to this Act shall have effect in relation to the enforcement in one part of the United Kingdom of maintenance orders made in another part.

Obligations,
awards and
judgments
expressed
in foreign
currency.
1882 c. 61.

4.—(1) The provisions specified in subsection (2) below shall cease to have effect.

(2) The provisions mentioned in subsection (1) above are—

(a) in the Bills of Exchange Act 1882—

(i) section 57(2) (measure of damages for bills dishonoured abroad), and

(ii) section 72(4) (rate of exchange), and

(b) the following provisions (which require the conversion to United Kingdom currency as at the date of registration of the judgments and awards to which they relate)—

(i) section 2(3) of the Foreign Judgments (Reciprocal Enforcement) Act 1933;

(ii) section 1(3) of the Arbitration (International Investment Disputes) Act 1966, and

(iii) Article 3(2) of the European Communities (Enforcement of Community Judgments) Order 1972.

1933 c. 13.

1966 c. 41.

S.I. 1972/1590.

(3) The provisions specified in subsection (2)(a) above shall continue to have effect in relation to bills drawn before the coming into force of this section.

(4) The provisions specified in subsection (2)(b) above shall continue to have effect in relation to judgments and awards registered before the coming into force of this section.

Appeals etc.
from courts-
martial.
1968 c. 20.

5.—(1) The following section shall be inserted after section 33 of the Courts-Martial (Appeals) Act 1968—

“Appellant’s
expenses.

33A. Without prejudice to section 31 above, where an appellant who is not in custody appears before the Appeal Court either on the hearing of his appeal or in any preliminary or incidental proceedings, the Appeal Court may direct the Secretary of State to pay him the expenses of his appearance.”.

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(2) In section 34(2) of that Act (reference of cases by Service authorities), for the words "other than those of sections 31 and 32" there shall be substituted the words "other than that of section 32".

(3) Section 35 of that Act (order for costs of defence on reference) (which is superseded by this section) shall cease to have effect.

(4) In section 47(3) of that Act (costs on appeals to the House of Lords), for the words from the beginning to "accused", in the first place where it occurs, there shall be substituted the words "On determining an appeal from the Appeal Court,".

6.—(1) The following paragraph shall be inserted after paragraph 7 of Schedule 6 to the Employment Protection Act 1975 (Employment Appeal Tribunal):—

Temporary
additional
judges for
Employment
Appeal
Tribunal.
1975 c. 71.

"7A.—(1) At any time when it appears to the Lord Chancellor that it is expedient to do so in order to facilitate in England and Wales the disposal of business in the Appeal Tribunal, he may appoint a qualified person to be a temporary additional judge of the Tribunal during such period or on such occasions as the Lord Chancellor thinks fit.

(2) In this paragraph "qualified person" means a person qualified for appointment as a puisne judge of the High Court under section 9 of the Supreme Court of Judicature (Consolidation) Act 1925 or any person who has held office as a judge of the Court of Appeal or of the High Court."

(2) The following paragraph shall be inserted after paragraph 8 of that Schedule:—

"8A. A person appointed to be a temporary additional judge of the Appeal Tribunal shall have all the functions of a judge nominated under section 87(2)(a) above."

(3) The following paragraph shall be inserted after paragraph 23 of that Schedule:—

"23A. A person appointed to be a temporary additional judge of the Appeal Tribunal shall be paid such remuneration and allowances as the Lord Chancellor may, with the approval of the Minister for the Civil Service, determine."

7.—(1) A receiver appointed under the law of any part of the United Kingdom in respect of the whole or part of any property or undertaking of a company and in consequence of the company having created a charge which, as created, was a floating charge may exercise his powers in any other part of the United Kingdom

Extent of
powers of
receivers and
managers in
respect of
companies.

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so far as their exercise is not inconsistent with the law applicable there.

(2) In subsection (1) above "receiver" includes a manager and a person who is appointed both receiver and manager.

Oaths and
affirmations.
1888 c. 46.

8.—(1) The following section shall be substituted for section 1 of the Oaths Act 1888:—

"When affirmation may be made instead of oath.

1. Any person who objects to being sworn shall be permitted to make his solemn affirmation instead of taking an oath in all places and for all purposes where an oath is or shall be required by law, which affirmation shall be of the same force and effect as if he had taken the oath."

1961 c. 21.

(2) The Oaths Act 1961 shall extend to Northern Ireland.

(3) The provisions specified in Part III of Schedule 5 below shall cease to have effect.

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ENGLAND AND WALES

Supreme Court

Appeals.
1925 c. 49.

9. In the Supreme Court of Judicature (Consolidation) Act 1925—

(a) section 27(2) (decision of Court of Appeal in certain matrimonial and related proceedings to be final except in certain circumstances), and

(b) in section 63(1), the words "and in all cases where there is a right of appeal to the High Court from any court or person the appeal shall be heard and determined by a divisional court",

shall cease to have effect.

Appointment
to office.

10.—(1) The following section shall be substituted for section 116 of the Supreme Court of Judicature (Consolidation) Act 1925:—

"Appointment of deputies and temporary appointments.

116.—(1) If it appears to the Lord Chancellor that it is expedient to do so in order to facilitate the disposal of business in the Supreme Court, he may appoint a person—

(a) to act as a deputy for any officer of the Supreme Court, or

(b) to act as a temporary additional officer in any office in the Supreme Court,

during such period or on such occasions as the Lord Chancellor thinks fit.

(2) Subject to subsection (3) below, a person shall not be qualified for appointment under this section

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if the office in which he would act by virtue of the appointment is one to which he would not be qualified for permanent appointment.

(3) A master of the Supreme Court shall be qualified to be appointed to act as a deputy for a registrar in bankruptcy of the High Court.

(4) A person acting in an office by virtue of an appointment under this section shall have all the powers of a person permanently appointed to that office.

(5) The Lord Chancellor may pay to any person appointed under this section such remuneration and allowances as he may, with the consent of the Minister for the Civil Service, determine.”.

(2) The qualifications for appointment to offices in the Supreme Court shall be extended as mentioned in subsection (3) below.

(3) There may be appointed—

(a) to the office of Registrar of Criminal Appeals, any barrister or solicitor of not less than ten years' standing (whether practising or not) ;

(b) to the office of Assistant Registrar of Criminal Appeals, any barrister or solicitor of not less than seven years' standing (whether practising or not) ;

(c) to the office of Registrar in Bankruptcy of the High Court, any holder of one of the following offices, namely—

(i) district registrar, and

(ii) county court registrar ;

(d) to the office of Master, Chancery Division, any holder of one of the following offices, namely—

(i) Master, Taxing Office,

(ii) Official Solicitor, and

(iii) county court registrar ;

(e) to the office of Master, Taxing Office, any holder of the office of Official Solicitor ;

(f) to the office of Official Solicitor, any solicitor of not less than ten years' standing (whether practising or not) ;

(g) to the office of registrar of the Principal Registry of the Family Division, any holder of the office of district registrar or county court registrar ; and

(h) to the office of district probate registrar, any person who has served not less than five years as a clerk in the

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Principal Registry of the Family Division or a district probate registry.**(4) Accordingly—**

1925 c. 49.

- (a) the following subsection shall be substituted for section 126(3) of the Supreme Court of Judicature (Consolidation) Act 1925 (which specifies the qualifications for appointment to certain offices):—

“ (3) A person shall not be qualified—

- (a) to be appointed a registrar of the Principal Registry of the Family Division, unless he is—

- (i) a practising barrister or solicitor of not less than ten years' standing, or
- (ii) a district registrar, or
- (iii) a county court registrar, or
- (iv) a district probate registrar of not less than five years' standing,

or has served not less than ten years as a clerk in the Principal Registry of the Family Division ; or

- (b) to be appointed a district probate registrar unless he is—

- (i) a practising barrister or solicitor of not less than five years' standing, or
- (ii) a registrar of the Principal Registry of the Family Division,

or has served not less than five years as a clerk in the Principal Registry of the Family Division or a district probate registry.” ; and

- (b) in Schedule 4 to that Act (which specifies the qualifications for appointment to certain other offices)—

- (i) the following shall be substituted for the entry in column 2 of paragraph 5 (persons qualified for appointment as Registrar in Bankruptcy):—

“ 5. (i) A practising barrister or practising solicitor of not less than ten years' standing ; or

(ii) a district registrar ; or

(iii) a county court registrar.” ; and

(ii) at the end of paragraph 6(iii) (persons qualified for appointment as Master, Chancery Division) there shall be added the words “ or

(iv) A county court registrar.”.

11.—(1) For section 3 of the Administration of Justice Act 1965 (Accountant General to maintain an account at Bank of England) there shall be substituted the following section:—

3. The Accountant General shall maintain an account at the Bank of England or at such other bank as may be designated by the Lord Chancellor with the concurrence of the Treasury and shall pay all sums received by him into that account and all sums payable by him out of it.”

(2) In section 4 of that Act (mode of effecting payment of money and transfer of securities, &c., into Supreme Court)—

(a) in subsection (1), for the words “Bank of England to the credit of the Accountant General’s account” there shall be substituted the words “Accountant General’s account under section 3 above”; and

(b) in subsection (3), after the words “Bank of England” there shall be inserted the words “or such other bank as may have been designated under section 3 above”.

(3) The following section shall be inserted after section 6 of that Act:—

“Transfer of funds in court to Official Custodian for Charities and Church Commissioners.

6A.—(1) Any funds for the time being vested in the Accountant General and held by him in trust for any charity or in trust for any ecclesiastical corporation in the Church of England may, if the Accountant General on an application made in that behalf to him by the Charity Commissioners or the Church Commissioners thinks fit so to direct, be transferred to the Official Custodian for Charities or the Church Commissioners, as the case may be.

(2) Any funds transferred by virtue of a direction given under subsection (1) above shall be vested in and held by the Official Custodian for Charities or the Church Commissioners respectively in trust for the charity or ecclesiastical corporation upon the trusts upon which the funds were held before the transfer.

(3) No fees shall be payable under the Supreme Court of Judicature (Consolidation) Act 1925 or any rule or order made under it in respect of a transfer of funds under this section.

(4) In this section “ecclesiastical corporation” means a capitular body within the meaning of the Cathedrals Measure 1963 or the incumbent of a benefice.”

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Alteration of qualifications for appointment as Circuit judge.

1971 c. 23.

Sittings of county courts.

1959 c. 22.

Injunctions and declarations in county courts.

Circuit judges and county courts

12. In section 16(3) of the Courts Act 1971 (service for five years as a Recorder to be a qualification for appointment as a Circuit judge) for the word "five" there shall be substituted the word "three".

13. The following section shall be substituted for sections 34 to 38 of the County Courts Act 1959 (sittings of county courts):—

"Places and times of sittings.

34.—(1) In any district the places at which the court sits, and the days and times when the court sits at any place, shall be determined in accordance with directions given by or on behalf of the Lord Chancellor.

(2) A judge may from time to time adjourn any court held by him, and a registrar may from time to time adjourn—

(a) any court held by him, or

(b) in the absence of the judge, any court to be held by the judge.

(3) With the consent of the parties to proceedings (whether heard by the judge or a registrar), the proceedings, or any question arising in the proceedings, may be heard and determined at any place either within or without the district.

(4) References in this Act to sittings of the court shall include references to sittings by any registrar in pursuance of any provision contained in, or made under, this Act."

14. The following section shall be inserted after section 51 of the County Courts Act 1959:—

"Injunctions and declarations relating to land.

51A.—(1) Subject to the provisions of this section, a county court shall have the same jurisdiction as the High Court to grant an injunction or declaration in respect of, or relating to, any land, or the possession, occupation, use or enjoyment of any land.

(2) This section only applies where the net annual value for rating of the relevant land does not exceed the current limit on jurisdiction in section 51 of this Act.

(3) In this section "land" includes any hereditament, and in the case of an easement or licence the relevant land for the purposes of subsection (2) above is the land in respect of which the easement or licence is claimed or on, through, over or under which the easement or licence is claimed.

(4) Any party to proceedings in the High Court which could have been brought in a county court under this section may apply to the High Court or a judge thereof for an order that the action be transferred to any county court—

(a) in which the proceedings could have been brought, or

(b) which the High Court or judge may deem to be the most convenient to the parties,

and the High Court or judge may order that the proceedings be transferred accordingly."

15.—(1) In section 56(2) of the County Courts Act 1959 (which limits a county court's jurisdiction in Admiralty matters)—

Limits on Admiralty and probate jurisdiction of county courts.

(a) for "one thousand pounds" there shall be substituted "£5,000", and

(b) for "three thousand five hundred pounds" there shall be substituted "£15,000".

1959 c. 22.

(2) In section 60 of that Act (costs of certain Admiralty proceedings)—

(a) subsection (2) shall cease to have effect;

(b) in subsection (3)—

(i) after the word "ship", in the first place where it occurs, there shall be inserted the words "or any claim for salvage services,"; and

(ii) for "£100" there shall be substituted "£350";

(c) in subsection (4), for "one thousand pounds" there shall be substituted "£5,000"; and

(d) in subsection (5), for "(2) to" there shall be substituted "(3) and".

(3) In section 62(1) of that Act (jurisdiction of county courts in probate matters), for "one thousand pounds" there shall be substituted "£15,000".

(4) In section 192(2)(a) of that Act (financial limits which may be raised by Order in Council), for "60(3)" there shall be substituted "56(2), 60, 62(1)".

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Right of
audience in
county courts.
1959 c. 22.

16. The following section shall be inserted after section 89 of the County Courts Act 1959:—

“Right of
audience by
direction of
Lord
Chancellor.

89A.—(1) The Lord Chancellor may at any time direct that such categories of persons in relevant legal employment as may be specified in the direction may address the court in any proceedings in a county court, or in proceedings in a county court of such description as may be so specified.

(2) In subsection (1) above, “relevant legal employment” means employment which consists of or includes giving assistance in the conduct of litigation to a solicitor whether in private practice or not.

(3) A direction under this section may be given subject to such conditions and restrictions as appear to the Lord Chancellor to be necessary or expedient, and may be expressed to have effect as respects every county court or as respects a specified county court or as respects one or more specified places where a county court sits.

(4) It is hereby declared that the power to give directions conferred by the section includes a power to vary or rescind any direction given under this section.”.

County court
jurisdiction
in respect of
arbitrations.

17.—(1) The following shall be substituted, in section 92 of the County Courts Act 1959 (power of judge to refer to arbitration), for subsections (1) and (2) and the words from the beginning of subsection (3) to “reference”, in the first place where it occurs:—

“Reference
to
arbitration.

92.—(1) County court rules—

- (a) may prescribe cases in which proceedings are (without any order of the court) to be referred to arbitration, and
- (b) may prescribe the manner in which and the terms on which cases are to be so referred, and
- (c) may, where cases are so referred, require other matters within the jurisdiction of the court in dispute between the parties also to be referred to arbitration.

(2) County court rules—

- (a) may prescribe cases in which proceedings may be referred to arbitration by order of the court, and

(b) may authorise the court also to order other matters in dispute between the parties and within the jurisdiction of the court to be so referred.

(3) On a reference under subsection (1) or (2) above".

(2) Section 26 of the Arbitration Act 1950 (which provides for the enforcement of arbitration awards in the High Court) shall be re-numbered so as to become section 26(1) of that Act; and at the end of the resulting subsection (1) there shall be added as subsections (2) and (3):—

"(2) If—

(a) the amount sought to be recovered does not exceed the current limit on jurisdiction in section 40 of the County Courts Act 1959, and

(b) a county court so orders,

it shall be recoverable (by execution issued from the county court or otherwise) as if payable under an order of that court and shall not be enforceable under subsection (1) above.

(3) An application to the High Court under this section shall preclude an application to a county court and an application to a county court under this section shall preclude an application to the High Court."

18. In section 101 of the County Courts Act 1959 (register of judgments and orders)—

(a) in subsection (1)(a), for the words "ten pounds and upwards" there shall be substituted the words "not less than £10 or such other sum as may be prescribed";

(b) for subsection (3) there shall be substituted the following subsections:—

"(3) Circumstances may be prescribed in which judgments or orders are to be exempt from registration or in which the registration of any judgment or order is to be cancelled.

(3A) Regulations under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament."

19.—(1) In section 102(3)(c)(iii) of the County Courts Act 1959 (by virtue of which county court rules may authorise the registrar to hear and determine certain proceedings by leave of the judge and in the absence of objection by any of the parties), for the

Register of
county court
judgments.
1959 c. 22.

County court
registrars.

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words from "by leave of the judge" to "the parties" there shall be substituted the words "subject to any arrangements made by the judge for the proper distribution of business between himself and the registrar,".

(2) In section 168 of that Act (rules as to funds in county courts)—

(a) in paragraph (c), for the words from "registrars" to "General" there shall be substituted the words "the transfer to the Accountant General of", and

(b) in paragraphs (i) and (j), for the word "registrars", wherever occurring, there shall be substituted the words "officers of the court".

(3) The following section shall be substituted for section 180 of that Act (registrar to take charge of fees, &c.):—

"Payment
and
application
of fees,
fines, etc.

180.—(1) Subject to subsection (2) below, all fees, fines and forfeitures payable under this Act and any penalty payable to an officer of a county court under any other Act shall be paid to officers designated by the Lord Chancellor and dealt with by them in such manner as the Lord Chancellor, after consultation with the Treasury, may direct.

(2) Subsection (1) above does not apply to fines imposed on summary conviction or to so much of a fine as is applicable under section 84(3) above towards indemnifying a party injured."

(4) The following provisions of that Act, namely—

(a) section 182(1) (which requires part-time registrars to give security in such sums as the Treasury may direct), and

(b) section 183 (which requires registrars to keep such special accounts as the Lord Chancellor may direct),

shall cease to have effect.

1971 c. 32.

(5) In section 6 of the Attachment of Earnings Act 1971—

(a) in paragraphs (a)(ii) and (b) of subsection (7) (collecting officers), for the word "registrar" there shall be substituted the words "appropriate officer", and

(b) the following subsection shall be added after that subsection:—

"(8) In subsection (7) above "appropriate officer" means an officer designated by the Lord Chancellor."

20. In section 186 of the County Courts Act 1959 (under which service of process issued from a county court may be proved by an endorsement showing the fact and mode of service)—

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Proof of
service of
process.
1959 c. 22.

- (a) in subsection (1), for the words "endorsement on a copy of the summons or process" there shall be substituted the words "a certificate in a prescribed form", and
- (b) in subsection (2), for the words "endorsing any false statement on a copy" there shall be substituted the words "giving a false certificate under subsection (1) above in respect of the service".

Magistrates' courts

21.—(1) The following subsection shall be substituted for section 13(3) of the Justices of the Peace Act 1949 (under which the chairman or a deputy chairman of the justices for a petty sessions area must preside at any meeting of the justices, if present):—

Persons to
preside at
meetings of
justices.
1949 c. 101.

"(3) Subject to the next following subsection, if the chairman or a deputy chairman of the justices for a petty sessions area is present at a meeting of those justices, he shall preside unless he requests another justice to preside in accordance with rules made under this section."

(2) At the end of subsection (5) (power to make rules) of the said section 13 there shall be added the words "and

(c) as to the justices whom a chairman or deputy chairman of justices may request to preside at a meeting."

Other provisions about courts

22. It shall cease to be a requirement that the practising barristers included among the persons empowered to make rules of court under section 99 of the Supreme Court of Judicature (Consolidation) Act 1925 and section 50 of the Matrimonial Causes Act 1973 be members of the General Council of the Bar.

Membership
of Rule
Committees.
1925 c. 49.
1973 c. 18.

23.—(1) The following courts, namely—

Jurisdiction
of ancient
courts.

(a) any court of a description specified in Part I of Schedule 4 to this Act except—

(i) the Estry Court for the Lordship of Denbigh, and

(ii) the court leet for the Manor of Laxton, and

(b) the courts specified in Part II of that Schedule,

being the courts which appear to the Lord Chancellor to have, but not to exercise, jurisdiction to hear and determine legal proceedings, shall cease to have any jurisdiction to hear and

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determine legal proceedings ; but any such court may continue to sit and transact such other business, if any, as was customary for it immediately before the coming into force of this section, and in the case of the courts specified in Part III of Schedule 4 to this Act the business that is to be treated as having been customary shall (apart from business relating to the appointment of officers of the court) be the business specified in relation to that court in column 2 of that Part.

(2) The descriptions of courts in Part I of Schedule 4 to this Act include courts held for manors of which the Queen or the Duke of Cornwall is the lord.

(3) Any jurisdiction—

(a) of the Court of the Chancellor or Vice-Chancellor of Oxford University, and

(b) of the Cambridge University Chancellor's Court,

other than that which presently exists under the statutes of those universities, is hereby abolished.

(4) The Lord Chancellor may by order make any incidental or transitional provision which he considers expedient in consequence of this section and may by such order provide—

(a) for enabling any jurisdiction appearing to him to have been formerly exercised by a court specified in Part I or II of Schedule 4 to this Act to be exercised instead by the High Court, the Crown Court, a county court or a magistrates' court ; and

(b) for such amendments or repeals of provisions of any local Act as appear to him to be required in consequence of this section.

(5) The power to make orders under this section shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament ; and any such order may be varied or revoked by a subsequent order made under the power.

Land Registration

Rectification
of the register.
1925 c. 21.

24. In section 82(3) of the Land Registration Act 1925—

(a) after the word " interest " there shall be inserted the words " or an order of the court " ;

(b) the following paragraph shall be substituted for paragraph (a)—

" (a) unless the proprietor has caused or substantially contributed to the error or omission by fraud or lack of proper care ; or " ; and

(c) paragraph (b) shall cease to have effect.

25.—(1) The following section shall be inserted after section 112 of the Land Registration Act 1925:—

“Inspection
in connection
with
criminal
proceedings
etc.

112A.—(1) If—

- (a) the Director of Public Prosecutions, a chief officer of police or an official receiver applies to the registrar for permission to make an inspection under this section in relation to a person specified in the application or to property so specified, and

(b) gives the registrar an appropriate certificate, the registrar shall permit him to inspect and make copies of and extracts from any register or document kept in the custody of the registrar so far as it relates to the person or property so specified.

(2) In subsection (1) above “appropriate certificate” means a certificate—

(a) that—

- (i) a criminal offence specified in the certificate has been or is reasonably suspected to have been committed, and
- (ii) there is reason to believe that the register may contain information relevant to the investigation of the offence or to the institution of proceedings for it, or

(b) that—

- (i) a person specified in the certificate has been convicted of a criminal offence so specified, and
- (ii) there is reason to believe that the register may contain information relevant to the institution of proceedings for making available for distribution or otherwise for recovering the proceeds of the commission of that offence or any other offence taken into consideration by the court dealing with him for it.

(3) The powers conferred on a chief officer of police by this section may be exercised on behalf of a chief officer of police by any police officer not below the rank of superintendent.

(4) In this section “official receiver” means an official receiver appointed under section 70 of the Bankruptcy Act 1914 or section 233 of the Companies Act 1948.”

(2) Accordingly, in section 112 of that Act (general provision as to inspection of register and other documents at Land Registry) after the word “Subject” there shall be inserted the words “to section 112A below and”.

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Inspection and
copying of
registers and
documents in
custody of
Land Registry
in connection
with criminal
proceedings
etc.

1925 c. 21.

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Alteration of
methods of
protecting
mortgages of
registered land.
1925 c. 21.

26.—(1) The following section shall be substituted for section 106 of the Land Registration Act 1925 (which among other things provides that a mortgage by deed of registered land may be protected by means of a caution in a specially prescribed form and in no other way):—

“Creation
and
protection of
mortgages of
registered
land.

106.—(1) The proprietor of any registered land may, subject to any entry to the contrary on the register, mortgage, by deed or otherwise, the land or any part of it in any manner which would have been permissible if the land had not been registered and, subject to this section, with the like effect.

(2) Unless and until the mortgage becomes a registered charge,—

(a) it shall take effect only in equity, and

(b) it shall be capable of being overridden as a minor interest unless it is protected as provided by subsection (3) below.

(3) A mortgage which is not a registered charge may be protected on the register by—

(a) a notice under section 49 of this Act,

(b) any such other notice as may be prescribed,
or

(c) a caution under section 54 of this Act.

(4) A mortgage which is not a registered charge shall devolve and may be transferred, discharged, surrendered or otherwise dealt with by the same instruments and in the same manner as if the land had not been registered.”

(2) The Chief Land Registrar may arrange for the conversion into a registered charge, in such circumstances and subject to such conditions as he may direct, of any mortgage protected by a caution in a specially prescribed form entered on the register before the coming into force of this section.

Estates of deceased persons

Proceedings
against estates.
1970 c. 17.

27.—(1) In section 2 of the Proceedings Against Estates Act 1970 (power to treat proceedings purporting to be commenced against a deceased person as having been commenced against his estate)—

(a) for paragraph (b) there shall be substituted the following paragraph:—

“ (b) for enabling proceedings purporting to have been commenced against a person to be treated, if he was dead at their commencement, as having been commenced against his estate, whether or not a

grant of probate or administration was made before their commencement ;” ; and

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- (b) in paragraph (c), for the words “ is made ” there shall be substituted the words “ is or has been made ”.

28.—(1) In section 46 of the Administration of Estates Act 1925—

Distribution of estate of intestate leaving surviving spouse.

- (a) in paragraph (i) of subsection (1) (distribution of estate of intestate leaving surviving spouse)—

1925 c. 23.

(i) as it has effect as respects persons dying before 1953, for the words “ five pounds per cent. per annum ”, and

(ii) as it has effect as respects persons dying after 1952, for the words “ four pounds per cent. per annum ”, wherever they occur,

there shall be substituted the words “ at such rate as the Lord Chancellor may specify by order ”, and

- (b) the following subsection shall be inserted after subsection (1) and shall have effect both as respects persons dying before 1953 and after 1952:—

“ (1A) The power to make orders under subsection (1) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament ; and any such order may be varied or revoked by a subsequent order made under the power.”.

(2) Subsections (2) and (4) of section 47A of that Act (method of calculation of value of life interest of surviving spouse) shall cease to have effect.

(3) The following subsections shall be inserted after subsection (3) of that section:—

“ (3A) The capital value shall be reckoned in such manner as the Lord Chancellor may by order direct, and an order under this subsection may include transitional provisions.

(3B) The power to make orders under subsection (3A) above shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament ; and any such order may be varied or revoked by a subsequent order made under the power.”.

PART III

OTHER PROVISIONS

Scotland

Admission of
written
statements
and reports.
1933 c. 41.

29.—(1) In section 16 of the Administration of Justice (Scotland) Act 1933, there shall be substituted for paragraph (e)—

“(e) to provide in any category of causes before the Court, for the admission in lieu of parole evidence of written statements (including affidavits) and reports, on such conditions as may be prescribed.”.

1971 c. 58.

(2) In section 32(1)(e) of the Sheriff Courts (Scotland) Act 1971, there shall be substituted for “affidavits” the words “written statements (including affidavits) and reports”.

Northern Ireland

Increase in
limits on
jurisdiction
under s. 68 of
Lunacy
Regulation
(Ireland)
Act 1871.
1871 c. 22.

30.—(1) In section 68 of the Lunacy Regulation (Ireland) Act 1871 (under which, where the property of a lunatic does not exceed £10,000 in value or the income thereof £500 per annum, an order may be made protecting the property or income or applying it for his benefit without an inquiry under a commission of lunacy) for “ten thousand pounds” and “five hundred pounds” there shall be substituted “£20,000” and “£2,000” respectively.

(2) The said section 68 shall be renumbered so as to become subsection (1).

(3) The following subsections shall be inserted after it:—

“(2) If it appears to Her Majesty in Council that a sum for the time being specified in subsection (1) above should be increased, Her Majesty may by Order in Council substitute for that sum such larger sum as may be specified in the Order.

(3) The power to make an Order under subsection (2) above includes power to vary or revoke a previous Order.

(4) An Order in Council made under subsection (2) above shall be subject to annulment in pursuance of a resolution of either House of Parliament.”.

Supplementary

Financial
provision.

31. All expenses incurred by any Minister of the Crown in consequence of the provisions of this Act shall be defrayed out of moneys provided by Parliament.

32.—(1) This Act may be cited as the Administration of Justice Act 1977. PART III
Citation etc.

(2) The Oaths Acts 1888 to 1961 and section 8 above may be cited together as the Oaths Acts 1888 to 1977.

(3) Any reference in this Act to any enactment is a reference to it as amended or applied by or under any other enactment, including this Act.

(4) The enactments specified in Schedule 5 to this Act (which include enactments which were obsolete or unnecessary before the passing of this Act) shall be repealed to the extent specified in the third column of that Schedule.

(5) The following provisions of this Act shall come into force at the expiration of a period of one month beginning with the date on which it is passed:—

- sections 1 and 2 ;
- sections 4 to 13 ;
- section 16 ;
- section 17(2) ;
- section 19(4) ;
- section 21 ;
- section 22 ;
- sections 24 to 26 ;
- section 29 ;
- section 30.

(6) The provisions of this Act, except section 31 above, this section and the sections mentioned in subsection (5) above, shall come into force on such day as the Lord Chancellor may by order made by statutory instrument appoint.

(7) An order under subsection (6) above—

- (a) may appoint different days for different provisions and for different purposes ; and
- (b) may make savings from the effect of any provision which it brings into force.

(8) The following provisions of this Act extend to England and Wales only, namely—

- section 1(1) and Part I of Schedule 1 ;
- section 2(1) and Part I of Schedule 2 ;
- sections 9 to 22 ;
- section 23 and Schedule 4 ;

PART III

sections 24 to 28 ;

subsections (4) and (5) above so far as they relate to any enactment which extends to England and Wales only ; paragraphs 1, 3 and 10 of Schedule 3.

(9) The following provisions of this Act extend to Scotland only, namely—

section 1(2) and Part II of Schedule 1 ;

section 2(2), and in Schedule 2, Part II and paragraph 11 ;

section 29 ;

subsections (4) and (5) above so far as they relate to any enactment which extends to Scotland only.

(10) The following provisions of this Act extend to Northern Ireland only, namely—

section 30 ;

subsection (5) above, so far as it relates to any enactment which extends to Northern Ireland only ;

paragraph 12 of Schedule 2.

(11) Section 6 above extends only to England and Wales and Scotland.

(12) Subsection (4) above, so far as it relates to any of the court-martial enactments, extends to any territory to which that enactment extends.

(13) In subsection (12) above “ the court-martial enactments ” means—

1955 c. 18.

section 102 of the Army Act 1955 ;

1955 c. 19.

section 102 of the Air Force Act 1955 ; and

1957 c. 53.

section 60 of the Naval Discipline Act 1957.

SCHEDULES

SCHEDULE 1

Section 1.

LEGAL AID, ADVICE AND ASSISTANCE

PART I

ENGLAND AND WALES

1. Section 9(3) of the Legal Aid Act 1974 (recalculation of contribution to legal aid fund) shall cease to have effect.

2. The following section shall be substituted for section 12 of that Act (panels of solicitors and counsel):—

“Selection of solicitors and counsel. 12.—(1) A person entitled to receive advice or assistance or legal aid may select—

(a) the solicitor to advise or assist or act for him, and

(b) if the case requires counsel, his counsel, and he shall be entitled to make the selection himself.

(2) Subsection (1) above shall not prejudice the law and practice relating to the conduct of proceedings by solicitor or counsel, or the circumstances in which a solicitor or counsel may refuse or give up a case or entrust it to another.

(3) A scheme made under section 15 of this Act may provide for the exclusion (whether permanently or temporarily) of a solicitor or barrister from those who may be selected under subsection (1) of this section on the ground that there is good reason for excluding him arising out of—

(a) his conduct when giving or selected to give advice or assistance, his conduct when acting or selected to act for persons receiving legal aid, or his professional conduct generally, or

(b) in the case of a member of a firm of solicitors, such conduct on the part of any person who is for the time being a member of the firm.

(4) Where a barrister or solicitor is aggrieved by any decision so excluding him, he may appeal against the decision to the High Court, and the High Court (whose decision shall be final) may confirm or quash the decision appealed against or may substitute such decision as the court thinks fit.

(5) Provision shall be made by rules of court for regulating appeals to the High Court under subsection (4) above, and those rules shall provide for limiting the time within which appeals may be brought.

SCH. 1

(6) In the preceding provisions of this section references to acting for a person receiving legal aid shall, in relation to a solicitor, include acting indirectly for such a person, as agent for his solicitor, but so that any selection of the solicitor to act as agent shall be made by the solicitor for whom he is to act."

3. In section 30(11) of that Act, for the words "section 5 of the Fugitive Offenders Act 1881" there shall be substituted the words "section 7 of the Fugitive Offenders Act 1967".

PART II

SCOTLAND

1967 c. 43.
1972 c. 50.

4. In section 6 of the Legal Aid (Scotland) Act 1967 (solicitors and counsel), as amended by section 6(1)(b) of the Legal Advice and Assistance Act 1972, for subsections (1), (2) and (3) there shall be substituted respectively the following subsections—

"(1) A person entitled to receive advice or assistance or legal aid may select—

(a) the solicitor to advise or act for him, and

(b) if the case requires counsel, his counsel,
and he shall be entitled to make the selection himself.

(2) Subsection (1) above shall not prejudice the right of a solicitor or advocate to refuse or give up a case or entrust it to another solicitor or advocate where he has good reason to do so.

(3)(a) The Law Society in the case of a solicitor, or the Faculty of Advocates in the case of an advocate may exclude him (whether permanently or temporarily) either from being selected under subsection (1) of this section, or from giving advice or assistance to or from acting for a person receiving legal aid, on the ground that there is good reason for excluding him arising out of—

(i) his conduct when acting or selected to act for persons receiving advice or assistance or legal aid,

(ii) his professional conduct generally, or

(iii) in the case of a member of a firm of solicitors, such conduct on the part of any person who is for the time being a member of the firm.

(b) Where a solicitor or advocate is aggrieved by any decision so excluding him, he may appeal against his exclusion to the Court of Session, and the Court in determining such an appeal may make such order as it thinks fit."

and after subsection (3) there shall be inserted the following subsection—

"(3A) Where in pursuance of arrangements made by the Law Society in accordance with any scheme for the time being in force

under section 8 of this Act a solicitor is available in any court for the special purpose of giving legal aid in connection with criminal proceedings in that court, the scheme may specify proceedings in which an accused person shall not be entitled to legal aid in that court otherwise than by representation by that solicitor.”.

SCH. 1

SCHEDULE 2

Section 2.

AMENDMENTS OF ENACTMENTS RELATING TO DETERMINATION
OF EXPENSES ETC.

PART I

ENGLAND AND WALES

Coroners Act 1887

1. In section 25A(1) of the Coroners Act 1887 (jurors' expenses), 1887 c. 71. for the words “the prescribed rates” there shall be substituted “rates determined by the Secretary of State with the consent of the Minister for the Civil Service.”.

Welsh Courts Act 1942

2. The following subsections shall be substituted for section 3(1) of the Welsh Courts Act 1942 (provisions as to interpreters):— 1942 c. 40.

“(1) The Lord Chancellor may make rules as to the provision and employment of interpreters of the Welsh and English languages for the purposes of proceedings before courts in Wales.

(1A) The interpreters shall be paid, out of the same fund as the expenses of the court are payable, such remuneration in respect of their services as the Lord Chancellor may determine.

(1B) The Lord Chancellor's powers under subsections (1) and (1A) above shall be exercised with the consent of the Minister for the Civil Service.”.

Coroners Act 1954

3. In section 1(1) of the Coroners Act 1954 for the words 1954 c. 31. “prescribed by rules to be made under this subsection (by statutory instrument) by the Secretary of State” there shall be substituted “determined by the Secretary of State with the consent of the Minister for the Civil Service”.

Costs in Criminal Cases Act 1973

4. In section 17 of the Costs in Criminal Cases Act 1973 (power 1973 c. 14. to make regulations about costs)—

(a) in paragraph (a) of subsection (1), for the words “and the conditions under which such costs may be allowed” there shall be substituted the words “, circumstances in which and conditions under which such costs may be allowed and expenses which may be included in such costs”; and

SCH. 2

- (b) the following subsection shall be inserted after that subsection:—

“(1A) Regulations under this section may provide that rates or scales of allowances payable out of central funds under this Act shall be determined by the Secretary of State with the consent of the Minister for the Civil Service.”.

Administration of Justice Act 1973

1973 c. 15.

5. In paragraph 8 of Schedule 1 to the Administration of Justice Act 1973 (travelling, subsistence and financial loss allowances for justices of the peace)—

- (a) the following sub-paragraph shall be inserted after sub-paragraph (3):—

“(3A) Allowances payable under this paragraph shall be paid at rates determined by the Secretary of State with the consent of the Minister for the Civil Service.”; and

- (b) the following paragraph shall be substituted for sub-paragraph (5)(a):—

“(a) for prescribing the forms to be used and the particulars to be provided for the purpose of claiming payment of allowances;”.

Powers of Criminal Courts Act 1973

1973 c. 63.

6. In paragraph 13(1) of Schedule 3 to the Powers of Criminal Courts Act 1973 (travelling and subsistence allowances for members of probation and after-care committees and case committees)—

- (a) in paragraph (a), for the words “the prescribed rates” there shall be substituted the words “rates determined by the Secretary of State with the consent of the Minister for the Civil Service”; and

- (b) in paragraph (b), for the words “the prescribed rate” there shall be substituted the words “a rate determined by the Secretary of State with the consent of the Minister for the Civil Service”.

Juries Act 1974

1974 c. 23.

7. In section 19 of the Juries Act 1974 (payment for jury service) for the words “the prescribed rates” there shall be substituted the words “rates determined by the Lord Chancellor with the consent of the Minister for the Civil Service”.

PART II

SCOTLAND

Juries Act 1949

1949 c. 27.

8. In section 24(1) of the Juries Act 1949 (payment in respect of jury service in Scotland) for the words “prescribed scales” there shall be substituted the words “scales determined by the Secretary of State with the consent of the Minister for the Civil Service.”.

District Courts (Scotland) Act 1975

SCH. 2

9. In section 17 of the District Courts (Scotland) Act 1975—

1975 c. 20.

(a) the following subsection shall be inserted after subsection (5):—

“(5A) Allowances payable under this section shall be paid at rates determined by the Secretary of State with the consent of the Minister for the Civil Service.”; and

(b) the following paragraph shall be substituted for paragraph (7)(a):—

“(a) for prescribing the forms to be used and the particulars to be provided for the purpose of claiming payment of allowances ;”.

PART III

UNITED KINGDOM

Pensions Appeal Tribunals Act 1943

10. The following paragraph shall be inserted after paragraph 7 of the Schedule to the Pensions Appeal Tribunals Act 1943:—

1943 c. 39

“7A. The Tribunal shall make such payments as the Lord Chancellor with the consent of the Minister for the Civil Service may determine in respect of travelling expenses and allowances to the following persons—

(a) an appellant attending the hearing of his appeal by the Tribunal ;

(b) in a case where an appellant is unable to attend the hearing for reasons of health, a relative or friend attending the hearing on his behalf ;

(c) in a case where the appellant attends the hearing but requires for reasons of health to be accompanied by an attendant, that attendant.”.

11. In its application to Scotland paragraph 10 above shall have effect, in accordance with section 13 of the said Act of 1943, with the substitution, in the paragraph which it inserts in the Schedule to that Act, of a reference to the Lord President of the Court of Session for the reference to the Lord Chancellor.

12. In its application to Northern Ireland, paragraph 10 above shall have effect, in accordance with section 14 of the said Act of 1943, with the substitution, in the paragraph which it inserts in the Schedule to that Act, of a reference to the Lord Chief Justice of Northern Ireland for the reference to the Lord Chancellor.

Section 3.

SCHEDULE 3

MAINTENANCE ORDERS

Registration etc. of maintenance orders in England and Wales

1958 c. 39. 1. The following subsections shall be substituted for subsection (2) of section 1 of the Maintenance Orders Act 1958 (introductory provisions relating to registration in one court of a maintenance order made by another):—

“(2) For the purposes of subsection (1) above, a maintenance order made by a court in Scotland or Northern Ireland and registered in England under Part II of the Maintenance Orders Act 1950 shall be deemed to have been made by the court in England in which it is so registered.

(2A) This Part of this Act applies—

(a) to maintenance orders made by the High Court or a county court, or a magistrates’ court, other than orders registered in Scotland or Northern Ireland under Part II of the Maintenance Orders Act 1950, and

(b) to maintenance orders made by a court in Scotland or Northern Ireland and registered in England under Part II of the Maintenance Orders Act 1950.”.

2. The following subsection shall be inserted after subsection (6) of section 2 of the said Act of 1958 (registration of maintenance orders):—

“(6A) In this section—

“High Court order” includes a maintenance order deemed to be made by the High Court by virtue of section 1(2) above, and

“magistrates’ court order” includes a maintenance order deemed to be made by a magistrates’ court by virtue of that subsection.”.

3. After subsection (6) of section 4 of the said Act of 1958 (variation of orders registered in magistrates’ courts) there shall be inserted the following subsection:—

“(6A) No application for any variation in respect of a registered order shall be made to any court in respect of an order made by the Court of Session or the High Court in Northern Ireland and registered in that court in accordance with the provisions of this Part of this Act by virtue of section 1(2) above.”.

4. In section 5 of the said Act of 1958 (cancellation of registration)—

(a) in subsection (3) for the words “a magistrates’ court” and “the magistrates’ court”, wherever they occur, there shall be substituted the words “the original court”; and

(b) the following subsection shall be inserted after subsection (4):— SCH. 3

“(4A) For the purposes of a notice under subsection (2) or (3) above—

“court of registration” includes any court in which an order is registered under Part II of the Maintenance Orders Act 1950, and

“registration” includes registration under that Act.”.

5. The following subsections shall be substituted for section 23(2) of the said Act of 1958 (extent):—

“(2) The following provisions of this Act, namely—
section 2 ;

section 5(2), (3), (4) and (4A) ;

extend to Scotland and Northern Ireland.

(2A) Section 20(3)(a) above extends to Northern Ireland.

(2B) Subject to subsections (2) and (2A) above, this Act extends only to England.”.

6. The following subsection shall be inserted after section 18(3) of the Maintenance Orders Act 1950 (enforcement of registered 1950 c. 37. orders):—

“(3A) Notwithstanding subsection (1) above, no court in England in which a maintenance order is registered under this Part of this Act shall enforce that order whilst it is registered in another court in England under Part I of the Maintenance Orders Act 1958.”.

7. In section 21(2) of the said Act of 1950 (evidence admissible before court where order registered) for the words from “registered” to “superior court” there shall be substituted the words—

“(a) registered under this Part of this Act in a superior court and not registered under Part I of the Maintenance Orders Act 1958, or

(b) registered in a court in England under that Part of that Act by virtue of section 1(2) of that Act.”.

8. The following section shall be substituted for section 23 of the said Act of 1950 (notice of variation, etc.):—

“23.—(1) Where a maintenance order registered under this Part of this Act is discharged or varied by any court, the prescribed officer of that court shall give notice of the discharge or variation in the prescribed manner—

(a) to the prescribed officer of any court in which the order is registered ; and

(b) if the order was made by another court, to the prescribed officer of that court.

(2) Any officer to whom a notice is given under this section shall cause particulars of the notice to be registered in his court in the prescribed manner.”.

SCH. 3

9. In section 24 of the said Act of 1950 (cancellation of registration)—

- (a) in subsection (2), for the words “of the court” there shall be substituted the words “of any court”; and
- (b) in subsection (3), for the words from “to” in the first place where it occurs to the end of the subsection there shall be substituted the words:—

“(a) to the prescribed officer of the court by which the order was made; and

(b) to the prescribed officer of any court in which it is registered under Part I of the Maintenance Orders Act 1958.

(3A) On receipt of a notice under subsection (3) above:—

- (a) any such officer as is mentioned in paragraph (a) of that subsection shall cause particulars of the notice to be registered in his court in the prescribed manner; and
- (b) any such officer as is mentioned in paragraph (b) of that subsection shall cause particulars of the notice to be registered in his court in the prescribed manner and shall cancel the registration of the order.”.

10. Maintenance orders made by the Court of Session or the High Court in Northern Ireland which were registered in the High Court and purportedly thereafter registered in a magistrates’ court before the coming into force of this Schedule shall be deemed to be and always to have been validly registered in the magistrates’ court, and accordingly the provisions of Part I of the Maintenance Orders Act 1958 shall apply to them.

1958 c. 39.

Service of process

1950 c. 37.

11. In section 15 of the Maintenance Orders Act 1950 (service of process), for the words in subsection (1) from the beginning to “residing” there shall be substituted the words—

“Where—

(a) proceedings are begun in a court having jurisdiction under or by virtue of the following, namely—

- (i) this Part of this Act; or
- (ii) section 1(3) or 9(1) of the Matrimonial Proceedings (Magistrates’ Courts) Act 1960; or
- (iii) section 15 of the Guardianship of Minors Act 1971; or
- (iv) section 41 of the Maintenance Orders (Reciprocal Enforcement) Act 1972, or

(b) an action for separation and aliment is commenced in a sheriff court in Scotland,

and the person against whom the action or other proceedings is or are brought resides”.

*Enforcement of payment of capital sums in Scottish
divorce actions*

SCH. 3

12. In section 16 of that Act (which provides for the enforcement of maintenance orders throughout the United Kingdom and includes in the orders which may be enforced orders for the payment of periodical allowances under section 26 of the Succession (Scotland) 1964 c. 41. Act 1964 and section 5 of the Divorce (Scotland) Act 1976), in 1976 c. 39. subsection (2)(b)(i), after the words "periodical allowance", in the second place where they occur, there shall be inserted the words "or a capital sum".

SCHEDULE 4

Section 23.

CURTAILMENT OF JURISDICTION OF CERTAIN
ANCIENT COURTS

PART I

DESCRIPTIONS OF COURTS

Courts Baron.

Courts Leet.

Customary Courts of the manor.

Courts of Pie Poudre.

Courts of the Staple.

Courts of the clerks of the markets (or clerk of the market).

Hundred Courts.

Law Days.

Views of Frankpledge.

Common law (or Sheriffs') county courts as known before the passing of the County Courts Act 1846.

1846 c. 95.

PART II

SPECIFIC COURTS

The Basingstoke Court of Ancient Demesne.

The Coventry Court of Orphans.

The Great Grimsby Foreign Court.

The King's Lynn Court of Tolbooth.

In the City of London, the Court of Husting and the Sheriffs' Courts for the Poultry Compter and the Giltspur Street Compter.

The Macclesfield Court of Portmote.

The Maidstone Court of Conservancy.

The Melcombe Regis Court of Husting.

The Newcastle-upon-Tyne Courts of Conscience or Requests and Conservancy.

The Norwich Court of Mayoralty.

The Peterborough Dean and Chapter's Court of Common Pleas.

The Ramsey (Cambridgeshire) Court of Pleas.

SCH. 4

The Ripon Court Military.

The Ripon Dean and Chapter's Canon Fee Court.

The St. Albans Court of Requests.

The Court of the Hundred, Manor and Borough of Tiverton.

The York Courts of Husting, Guildhall and Conservancy.

The Ancient Prescriptive Court of Wells.

The Cheney (or Cheyney) Court of the Bishop of Winchester.

PART III**BUSINESS CUSTOMARY FOR CERTAIN COURTS**

<i>Court</i>	<i>Business which the court may sit to transact</i>
The Alcester (Warwickshire) Court Leet, Court Baron and View of Frankpledge.	The taking of presentments with respect to matters of local concern. The presentation of audited accounts of the manor.
The Ashburton Courts Leet and Baron.	The appointment of a portreeve and other officers. The taking of presentments with respect to matters of local concern.
The Bideford Manor Court.	The appointment of a people's warden, tything man and way-wardens. The taking of presentments with respect to matters of local concern.
The Court Leet and Court Baron of the Ancient Manor of Bowes in the County of Durham.	The taking of presentments with respect to matters of local concern. The presentation of audited accounts of the manor. The management of the commons in the manor.
The Ancient Court Leet and Court Baron of the Manor of Bromsgrove.	The appointment of a bailiff, reeve and other officers. The taking of presentments with respect to matters of local concern. The annual proclamation of the ancient charter granted in or about 1199. The observance of the ancient custom of the Midsummer Fair.

SCH. 4

<i>Court</i>	<i>Business which the court may sit to transact</i>
The Bucklebury Court Baron.	The taking of presentments with respect to matters of local concern. The appointment of tythingmen and haywards.
The Courts Leet and Baron of the Barony of Cemaes in the County of Dyfed.	The taking of presentments with respect to matters of local concern. The management of the common lands on the Preseli Hills in the County of Dyfed.
The Clifton Courts Leet and Baron and View of Frankpledge.	The taking of presentments with respect to matters of local concern. The appointment of pasture masters or byelaw men and other officers.
The Manorial Court for the Hundred and Borough of Cricklade.	The appointment of a hayward. The management of the common lands in the Hundred and Borough of Cricklade.
The Croyland View of Frankpledge, Court Leet and Great Court Baron.	The management of the commons and village greens within the Lordship of Croyland.
The Danby Court Leet and Court Baron.	The management of the commons in the manor of Danby.
The Manor of Dorney with Boveney Court Leet with Court Baron and View of Frankpledge.	The taking of presentments with respect to matters relating to Dorney and Lake End Commons.
The Manor Court of Dunstone (otherwise Blackslade).	The appointment of a foreman and reeve. The taking of presentments with respect to matters of local concern. The management of the commons in the manor.
The Court Baron of East Horndon.	The management of the commons in the manor of East Horndon.
The Courts Leet and Baron of the Manors of Eton-cum-Stockdales in Colenorton.	The appointment of a bailiff and hayward. The taking of presentments with respect to the management of the commons in the manors and other matters of local concern.

SCH. 4

<i>Court</i>	<i>Business which the court may sit to transact</i>
The Manor of Fyling Court Leet.	The management of the commons in the manor.
The Court Baron for the Manor of Heaton in the City of Bradford.	The annual appointment of a foreman. The taking of presentments with respect to matters of local concern. The occasional perambulation of boundaries.
The Court Leet and Court Baron of the Manor of Henley-in-Arden in the County of Warwick.	The taking of presentments with respect to matters of local concern.
The Town and Manor of Hungerford and Manor and Liberty of Sanden Fee Hocktide Court and Court Leet.	The appointment of a constable, portreeve, tithingmen and other officers. The administration and regulation of common rights and matters connected therewith.
The City of London Court of Husting.	The enrolment of wills and deeds.
The Manor of Mickley Court Leet and Court Baron.	The taking of presentments with respect to matters of local concern.
The Court Leet and Baron of the Manor of Mynachlogddu in the County of Dyfed.	The management of the common lands in the Parish of Mynachlogddu.
The Norwich Court of Mayoralty.	The admission of freemen of the City of Norwich.
The Court Leet of the Island and Royal Manor of Portland.	The taking of presentments with respect to the common wastes of the manor.
The Southampton Court Leet.	The taking of presentments with respect to matters of local concern.
The Southwark Courts Leet and Views of Frankpledge for (respectively) the King's Manor of Southwark, the Guildable Manor and the Great Liberty Manor.	The pronouncement of an address by the High Steward of the Southwark Manors and the appointment of traditional officers.

SCH. 4

<i>Court</i>	<i>Business which the court may sit to transact</i>
The Manor of Spaunton Court Leet and Court Baron with View of Frankpledge.	The taking of presentments with respect to matters of local concern. The control and management of various common rights over Spaunton Moor, North Yorkshire.
The Spitchwick Courts Leet and Baron.	The appointment of a foreman, reeve and other officers. The taking of presentments with respect to matters of local concern. The management of the commons in the manor of Spitchwick.
The Courts Leet and Baron of Stockbridge.	The appointment of a bailiff, serjeant at mace and hayward. The taking of presentments with respect to matters of local concern. The management of the commons in the borough of Stockbridge.
The Court Leet of the Manor and Borough of Wareham.	The taking of presentments with respect to the common, the town walls, the town pound and other matters of local concern.
The Warwick Court Leet.	The taking of presentments with respect to matters of local concern.
The Manor of Whitby Laithes Court Leet.	The management of the commons in the manor.

Section 32.

SCHEDULE 5

REPEALS

PART I

JUDGMENTS ETC IN FOREIGN CURRENCY

Chapter or Number	Short Title	Extent of Repeal
45 & 46 Vict. c. 61.	Bills of Exchange Act 1882.	Section 57(2).
23 & 24 Geo. 5. c. 13.	Foreign Judgments (Reciprocal Enforcement) Act 1933.	Section 72(4). Section 2(3).
1966 c. 41.	Arbitration (International Investment Disputes) Act 1966.	Section 1(3).
S.I. 1972 No. 1590.	European Communities (Enforcement of Community Judgments) Order 1972.	Article 3(2).

PART II

DETERMINATION OF EXPENSES ETC

Chapter	Short Title	Extent of Repeal
50 & 51 Vict. c. 71.	Coroners Act 1887.	Section 25A(4).
6 & 7 Geo. 6. c. 39.	Pensions Appeal Tribunals Act 1943.	In the Schedule, paragraph 5(4)(a).
1973 c. 15.	Administration of Justice Act 1973.	In Schedule 1, in paragraph 8(1), the words "at the prescribed rates" and "at the prescribed rate".
1973 c. 62.	Powers of Criminal Courts Act 1973.	In Schedule 3, in paragraph 18(2)(a), the words "the rates of allowances and".
1974 c. 23.	Juries Act 1974.	Section 19(7).
1975 c. 20.	District Courts (Scotland) Act 1975.	In section 17(1), the words "at the prescribed rates" and "at the prescribed rate".

PART III

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OATHS AND AFFIRMATIONS

Chapter	Short Title	Extent of Repeal
6 & 7 Vict. c. 85.	Evidence Act 1843.	In section 1, the words "in those cases wherein affirmation is by law receivable". Section 11.
31 & 32 Vict. c. 72.	Promissory Oaths Act 1868.	
34 & 35 Vict. c. 83.	Parliamentary Witnesses Oaths Act 1871.	In section 1, the words from "Where" to "form" and the words "or affirmation".
52 & 53 Vict. c. 63.	Interpretation Act 1889.	In section 3, in the definitions of the expressions "oath" and "affidavit", the words "in the case of persons for the time being allowed by law to affirm or declare instead of swearing", and in the definition of the expression "swear", the words "in the like case".
1 & 2 Geo. 5. c. 6.	Perjury Act 1911.	In section 15(2), in the definition of the expression "oath", the words "in the case of persons for the time being allowed by law to affirm or declare instead of swearing", and in the definition of the expression "swear", the words "in the like case".
23 & 24 Geo. 5. c. 20.	False Oaths (Scotland) Act 1933.	In section 7(1)(b), the words "by a person for the time being allowed by law to affirm or declare, instead of swearing".
1954 c. 33. (N.I.)	Interpretation Act (Northern Ireland) 1954.	In section 26(2), in the definition of "oath" the words "as respects persons for the time being allowed by law to affirm or declare instead of swearing" and in the definition of "swear" the words "in the like case".
3 & 4 Eliz. 2. c. 18.	Army Act 1955.	In section 102(a), the words from "and" to "belief" in the second place where it occurs.
3 & 4 Eliz. 2. c. 19.	Air Force Act 1955.	In section 102(a), the words from "and" to "belief" in the second place where it occurs.
5 & 6 Eliz. 2. c. 53.	Naval Discipline Act 1957.	In section 60(4)(a), the words from "and" to "belief" in the second place where it occurs.

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Chapter	Short Title	Extent of Repeal
9 & 10 Eliz. 2. c. 21.	Oaths Act 1961.	In section 1(1), the words "in certain cases" and the words from "on" to the end of the subsection, and section 2(2).

PART IV
APPEALS

Chapter	Short Title	Extent of Repeal
44 & 45 Vict. c. 68.	Supreme Court of Judicature Act 1881.	The whole Act.
15 & 16 Geo 5. c. 49.	Supreme Court of Judicature (Consolidation) Act 1925.	Section 27(2). In section 63(1), from "and in" to the end. In section 63(6)(c), the words "for hearing such an appeal as aforesaid".
6 & 7 Eliz. 2. c. 39.	Maintenance Orders Act 1958.	In section 4(7), from "and so much" to the end.
8 & 9 Eliz. 2. c. 58.	Charities Act 1960.	Section 42(3).
1967 c. 22.	Agriculture Act 1967.	In section 21(5), from "and this subsection" to the end.
1969 c. 58.	Administration of Justice Act 1969.	Section 15(2)(a).
1971 c. 62.	Tribunals and Inquiries Act 1971.	In section 13(4), from the beginning to "court; but".
1971 c. 78.	Town and Country Planning Act 1971.	In sections 246(4) and 247(5), the words from the beginning to "but".
1973 c. 38.	Social Security Act 1973.	Section 86(7).
1974 c. 52.	Trade Union and Labour Relations Act 1974.	In section 21(9), the words from the beginning to "court; but".
1975 c. 14.	Social Security Act 1975.	Section 94(6).

PART V
ANCIENT COURTS

Chapter	Short Title	Extent of Repeal
7 & 8 Vict. c. 19.	Inferior Courts Act 1844.	The whole Act.
7 & 8 Vict. c. 96.	Execution Act 1844.	Section 72. In section 73, the words from "the word" to "and" in the third place where it occurs.
8 & 9 Vict. c. 127.	Small Debts Act 1845.	Schedule (B). Sections 9 to 12, 14, 16 to 21 and 23. Section 24, except the words "In the construction of this Act every word importing the

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Chapter	Short Title	Extent of Repeal
8 & 9 Vict. c. 127— <i>cont.</i>	Small Debts Act 1845— <i>cont.</i>	masculine gender shall include females as well as males". Schedule (C). Section 18.
19 & 20 Vict. c. xvii.	Cambridge Award Act 1856.	The whole Act.
20 & 21 Vict. c. clvii.	Mayor's Court of London Procedure Act 1857.	The whole Act.
35 & 36 Vict. c. 86.	Borough and Local Courts of Record Act 1872.	Sections 6, 22 and 23.
46 & 47 Vict. c. 18.	Municipal Corporations Act 1883.	Sections 18 and 40(1).
50 & 51 Vict. c. 55.	Sheriffs Act 1887.	Section 2.
51 & 52 Vict. c. 57.	Statute Law Revision (No. 2) Act 1888.	Section 4.
53 & 54 Vict. c. 33.	Statute Law Revision Act 1890.	Section 2.
53 & 54 Vict. c. 51.	Statute Law Revision (No. 2) Act 1890.	Section 2
54 & 55 Vict. c. 67.	Statute Law Revision Act 1891.	Section 2.
55 & 56 Vict. c. 19.	Statute Law Revision Act 1892.	Section 2
56 & 57 Vict. c. 14.	Statute Law Revision Act 1893.	Section 2.
56 & 57 Vict. c. 54.	Statute Law Revision (No. 2) Act 1893.	Section 2.
57 & 58 Vict. c. 56.	Statute Law Revision Act 1894.	Section 2.
61 & 62 Vict. c. 22.	Statute Law Revision Act 1898.	Section 2.
8 Edw. 7. c. 49.	Statute Law Revision Act 1908.	Section 2.
3 & 4 Geo. 5. c. xcii.	Derby Corporation Act 1913.	Sections 98 and 100(2).
15 & 16 Geo. 5. c. 49.	Supreme Court of Judicature (Consolidation) Act 1925.	Part IX.
17 & 18 Geo. 5. c. 42.	Statute Law Revision Act 1927.	Section 2.
17 & 18 Geo. 5. c. xcii.	Derby Corporation Act 1927.	Section 92.
10 & 11 Geo. 6. c. 14.	Exchange Control Act 1947.	In Schedule 4, in paragraph 3, paragraph (ii) of the proviso and the word "and" immediately preceding the said paragraph (ii).
10 & 11 Geo. 6. c. 44.	Crown Proceedings Act 1947.	Section 34.
11 & 12 Geo. 6. c. 62.	Statute Law Revision Act 1948.	Section 2.
14 Geo. 6. c. 6.	Statute Law Revision Act 1950.	Section 2.
2 & 3 Eliz. 2. c. 5.	Statute Law Revision Act 1953.	Section 2.
7 & 8 Eliz. 2. c. 22.	County Courts Act 1959.	Sections 140, 162, 198 and 205(8).

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PART VI

MISCELLANEOUS

Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 21.	Land Registration Act 1925.	Section 82(3)(b).
15 & 16 Geo. 5. c. 23.	Administration of Estates Act 1925.	Section 47A(2) and (4).
15 & 16 Geo. 5. c. 49.	Supreme Court of Judicature (Consolidation) Act 1925.	In section 99(4), the words "being members of the General Council of the Bar." In Schedule 4, in paragraphs 6(ii), (iii) and 7(iv), the words from "provided" to "standing", in paragraph 9(i) the word "practising", and paragraph 9(ii). Section 15.
18 & 19 Geo. 5. c. 26.	Administration of Justice Act 1928.	
1 & 2 Geo. 6. c. 63.	Administration of Justice (Miscellaneous Provisions) Act 1938.	In Schedule 2, the amendment of section 116(3) of the Supreme Court of Judicature (Consolidation) Act 1925.
7 & 8 Eliz. 2. c. 22.	County Courts Act 1959.	In section 2, in subsection (2)(a) the words from "and the places" to the end, in subsection (2)(b) the words "discontinue the holding of any court", subsection (2)(c) and subsection (3)(a). Section 60(2). In section 168(c), the words "by them". In section 182, subsection (1), and in subsection (2) from the beginning to "subsection". Section 183. Section 14(1).
8 & 9 Eliz. 2. c. 48.	Matrimonial Proceedings (Magistrates' Courts) Act 1960.	
8 & 9 Eliz. 2. c. 58.	Charities Act 1960.	In Schedule 6, the entry relating to the Administration of Justice Act 1928.
1966 c. 31.	Criminal Appeal Act 1966.	In section 3(5), the word "practising", wherever occurring.
1968 c. 20.	Courts-Martial (Appeals) Act 1968.	Section 35.
1969 c. 58.	Administration of Justice Act 1969.	Section 4(3).
1971 c. 23.	Courts Act 1971.	In Schedule 8, paragraph 35(2).
1972 c. 50.	Legal Advice and Assistance Act 1972.	In section 6(1)(b), the words "subsections (1) to (3) of section 6,".

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Chapter	Short Title	Extent of Repeal
1972 c. 67.	Companies (Flouting Charges and Receivers) (Scotland) Act 1972.	Section 15(4).
1973 c. 15.	Administration of Justice Act 1973.	Section 7(1).
1973 c. 18.	Matrimonial Causes Act 1973.	In section 50, the words " being members of the General Council of the Bar ".
1974 c. 4.	Legal Aid Act 1974.	Section 9(3).